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24. 9:00 AM CASE NUMBER: C24-00237

CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT
(CONTINUED FROM: 01/22/2026)**

FILED BY:

TENTATIVE RULING:

This matter was first heard on January 22, 2026, and continued to resolve one matter concerning the cy pres beneficiary. That matter having been resolved, the motion is granted.

Plaintiff Connor Beare moves for preliminary approval of his class action with defendant Law Offices of Mitchell D. Bluhm & Associates, LLC and Robert Bradley Ridgeway ("Defendants").

A. Background and Settlement Terms

The original complaint was filed January 31, 2024, raising class action claims under the California Rosenthal Fair Debt Collection Practices Act and California Civil Code sections 1812.700-1812.702, on behalf of 13 individuals who received debt-collection letters from defendants. Defendants allegedly did not provide a statutorily-required "Consumer Collection Notice" in proper form and substance in connection with efforts to collect a debt. It further alleged that Robert Ridgeway, an attorney employed by the law office in question, had failed to obtain a debt collection license from the California Department of Financial Protection and Innovation as required by Financial Code §100001.

The proposed settlement would certify a class of thirteen persons who received the letters from defendant. Defendant would pay \$6,500 (based on a statutory penalty provision), with a minimum payment of \$500 to each class member. Defendants would be primarily responsible for administering the notice and implementation of the settlement.

If some class members are located and sent checks, but do not cash the checks, the remaining funds would be paid to a cy pres recipient, Bay Area Legal Aid. Counsel is required to attest that they do not have any pecuniary interest in the cy pres recipient, and must "notify the court if the attorney has a connection to or a relationship with a nonparty recipient." (C.C.P. § 382.4.) After the Court issued its tentative ruling indicating that a declaration was needed to comply with this requirement, a declaration adequately attesting to the fact that none of plaintiff's counsel "has any interest or involvement in the governance or work of the proposed cy pres recipient." This is sufficient. In addition, the cy pres recipient must be qualified under Code of Civil Procedure section 384(b), which requires that cy pres funds be provided "to nonprofit organizations or foundations to support projects

that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent[.]” of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or thing of value and the interests of the class.” Bay Area Legal Aid meets this requirement.

Defendants would agree not to engage in further debt collection practices in California without proper registration. Plaintiff would receive a service award of \$2,000. Plaintiff’s counsel would apply for an attorney fee of \$45,000, as part of the process of final approval of the settlement.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. Objections may be made in writing within sixty days after initial notice, or may object at the final fairness hearing. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The settlement contains release language covering all of the “released claims,” “arising from or relating to collection letters mailed by or on behalf of Defendants in the form attached as Exhibit “1” to Plaintiff’s Class Action Complaint filed herein[.]” (Agreement, Par. 2.16.) Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.”] “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal written discovery was undertaken. The matter settled after arms-length negotiations.

Counsel attest that they have analyzed the case, and that the result achieved in this litigation is fair, adequate, and reasonable.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered

is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks \$45,000 as fees. Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to provide a lodestar figure for any hearing on final approval.

Similarly, the requested representative payment of \$2,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. **The motion is granted.**

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk in Department 39. (The hearing itself will be set in Department 16, the Honorable Benjamin Reyes, which is assigned this matter for all purposes as of March 1, 2026.) Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.